

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X		
Frances Ramos,	:	
	:	Index Number:
	:	Date Purchased:
	:	Date Filed:
Plaintiff,	:	SUMMONS
-against-	:	
City of New York, New York City Police Department,	:	
Police Officer Kelvin Marte , Shield 20322 of the 40	:	
Precinct and New York City Police Officers John Doe,	:	
	:	Plaintiff's residence is:
	:	1290 Sedgewick Avenue
	:	Bronx, NY 10452
Defendants,	:	
-----X		

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: February 15, 2020
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Kelvin Marte , Shield 20322 of the 40 Precinct

New York City Police Officers John Doe

Frances Ramos,

Plaintiffs

-against-

City of New York, New York City Police Department, :
Police Officer Kelvin Marte , Shield 20322 of the 40
Precinct and New York City Police Officers John Doe,

Defendants

STATEMENT OF FACTS

- 3 of 13

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or before May 15, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about July 16, 2019, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about April 3, 2019 at approximately 3:00PM in the vicinity of Third Avenue and East 149 Street, Bronx, New York, Plaintiff was on her way to go shopping when she was stopped, handcuffed and arrested by MARTE and DOES.

9. That at no time had Plaintiff engaged in any illegal or unlawful behavior.

10. That at no time did Plaintiff possess or sell anything of an illegal or unlawful nature.

11. That at no time did Plaintiff possess a synthetic cannabinoid or synthetic marijuana.

12. That at not time did Plaintiff possess a controlled substance.

13. That at no time did possess marijuana.

14. That after Plaintiff was arrested, he was transported to the 40 precinct.

15. That while Plaintiff was held in the 40 precinct she was confined to a cell with numerous other female prisoners.

16. That while Plaintiff was held in the 40 precinct she was strip searched and that nothing illegal was found.

17. That after being held in the 40 precinct for several hours, she was transported to Bronx County Central Booking, located at 265 East 161 Street, Bronx, NY.

18. That while Plaintiff was held in Bronx County Central Booking, he was confined to a cell with numerous other female prisoners.

19. That on or about April 4, 2019 Plaintiff was arraigned on docket 2019BX009010 wherein she was charged with Criminal Possession of a Controlled Substance in the Seventh Degree and Possession, Manufacture, Distribution, Sale or Offer of Sale of Synthe.

20. That at the arraignment, Plaintiff was released and ordered to return to court.

21. That on and between April 4, 2019 and April 18, 2019 Plaintiff made numerous court appearances until the case against Plaintiff was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.

23. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
27. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.
29. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.
30. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.
32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, MARTE and DOES persisted in their false claim that Plaintiff possessed narcotics, specifically a synthetic cannabinoid/synthetic marijuana.

37. That MARTE and DOES claimed that they tested the purported synthetic cannabinoid/synthetic marijuana and that it tested positive for a controlled substance when it had in fact not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. At all times pertinent hereto, MARTE and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

40. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MARTE and DOES committed within the scope of her employment.

41. That City of New York and New York City Police Department targeted the area of East 149 Street and Third Avenue, Bronx County in an effort to make arrests for synthetic cannabinoid/synthetic marijuana.

42. That City of New York and New York City Police Department maintained a policy wherein they directed police officers, including MARTE and DOES to make arrests for synthetic cannabinoid/synthetic marijuana whether people did or did not have synthetic cannabinoid/synthetic marijuana.

43. That City of New York and New York City Police Department maintained a policy wherein they directed police officers, including MARTE and DOES to make arrests for synthetic cannabinoid/synthetic marijuana whether Plaintiff, specifically, did or did not have synthetic cannabinoid/synthetic marijuana.

44. That City of New York and New York City Police Department knew that Plaintiff was being singled out and arrested because she was falsely arrested by the 40 precinct on January 18, 2019, February 2, 2019, February 7, 2019, February 12, 2019, February 28, 2019, March 13,

2019, March 20, 2019, March 22, 2019, April 3, 2019 for possessing synthetic cannabinoid/synthetic marijuana on whether people did or did not have synthetic cannabinoid/synthetic marijuana.

45. That City of New York and New York City Police Department knew that MARTE had previously harassed and falsely arrested Plaintiff for possessing synthetic cannabinoid/synthetic marijuana on February 7, 2019.

46. That City of New York and New York City Police Department knew that MARTE had previously falsely arrested Dwight Trotman on September 6, 2018 for Criminal Possession of a Forged Instrument, under comptroller claim number 2019PI008302 and Jonathan Cornielle on September 22, 2018 for Criminal Sale of a Controlled Substance, under comptroller claim number 2019PI005122.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MARTE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

49. The City of New York and New York City Police Department's failure to provide adequate training in the recognition of controlled substances to MARTE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

50. The City of New York and New York City Police Department's failure to provide adequate supervision to MARTE and DOES to ensure that Plaintiff's arrest was made upon probable cause to believe that she possessed a controlled substance constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

51. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50 as if more fully stated herein at length.

52. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

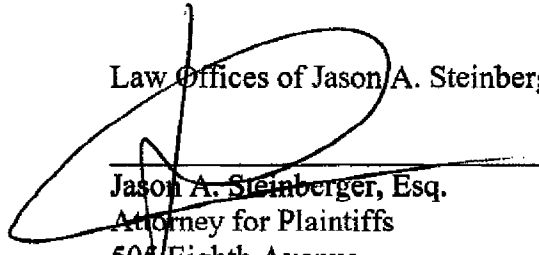
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

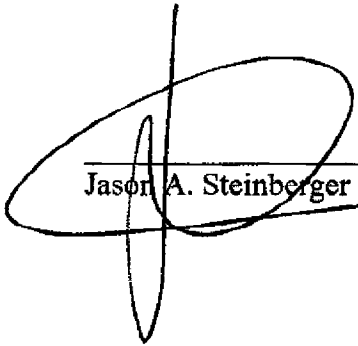


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
503 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: February 15, 2020



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****FRANCES RAMOS,****Plaintiff,****-against-****CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER KELVIN MARTE, SHIELD 20322 OF THE 40 PRECINCT AND NEW YORK
CITY POLICE OFFICERS JOHN DOE,****Defendant.****SUMMONS AND COMPLAINT****LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018****To:
Attorney (s) for Defendant(s)****Service of a copy of the within****is hereby admitted.****Dated:****Attorney(s) for****PLEASE TAKE NOTICE**☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on**NOTICE
OF ENTRY**☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF once of the Judges of the within named Court,
SETTLEMENT at**on** 200 , at m.**Dated:****JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018****To:
Attorney(s) for**